

A CONSTITUTIVE ACT OF JIMMA UNIVERSITY LAW STUDENTS ASSOCIATION

June 2018

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Preamble

Whereas it is evidently necessary that law students should be a byspel for the rest of the students both in discipline and academic efficiency;

Considering that it is important to bring about unity of the students, so as to be able to generate efficient and well educated professionals in the field of law;

Believing that it is mandatory to bring about a harmonal relationship between and among the students, the staffs of the school and between the students and the staffs;

Noting that it is found necessary to give a comprehensive and continuous support and direction for junior students by the senior ones;

Considering that providing a forum by which students may take part in solving their society's legal problems is necessary;

Recognizing that law students should take the first steps in knowing their rights and duties prior to others and disseminating the same to others;

Understanding that, it is must to have an internal Association to join the Ethiopian Law School Students Union,

Hereinafter; we, the students of Jimma University School of Law, have formed an Association called “**Jimma University Law Students Association**” and adopted this Constitutive Act as a binding instrument.

Definitions

Law School means Jimma University School of law

The Association means Jimma University Law Students Association

Union means Jimma University Students Union

The students mean Jimma University Law school students.

The General union means, the Ethiopian Law School Students Union

CHAPTER ONE

GENERAL PROVISIONS

Article 1. Nomenclature

The official name of the association, as stated by this constitutive act, shall be 'JIMMA UNIVERSITY LAW STUDENTS' ASSOCIATION'.

Article 2. Jurisdiction of the Association

The Association shall have full jurisdiction over its members, subject to limitations set under its objects.

Article 3. Emblem of the Association

The Association shall have its own emblem and a stamp to carry out its official duties.

Article 4. The Language

- 1) English, Amharic and Afan Oromo shall be the working language of the Association.
- 2) Languages in which the General Assembly meeting shall be held will be decided by the Executive Board, based on majority and convenience of communication.

Article 5. Membership

- 1) Regular students of the school shall be eligible for membership of the Association upon enrollment in the University regardless of their race, political opinion, religious views, sex, gender, physical disabilities and any of other socioeconomic background.
- 2) The membership shall be open to graduate students of the school.
- 3) Identification of the members shall be determined by a regulation to be issued by the Executive Board.

Article 6. Accountability of the Association

- 1) The Association is primarily accountable to its constitutive members.
- 2) Without prejudice to sub-article one of this article, the Association is also accountable to the chairperson/EB.
- 3) The Association shall perform all its duties and responsibilities in a close harmonical relation with the concerned office(s) of the university, ranging from the office of head of the school of law to the office of the president of the university.
- 4) As part of the principle of transparency and accountability, the Association shall check the work of the school through proper channels of communications.

Article 7. Autonomy of the Association

- 1) The governance of the Association shall be guided by the constitutive act drawn by the students and approved by the university's senate.
- 2) Notwithstanding sub-article one of this article, the academic rules and regulations of the University and Jimma University Students Union Constitution may be applicable.
- 3) The Association may establish organizational structure, which can ensure an expeditious execution of its responsibilities.

Article 8. Nature of the Association

- 1) The Association shall be non-political and secular.
- 2) The Association shall in no way, directly or indirectly, support any religious ideology and/or any political activities of any party or persons.

Article 9. Objectives

The Association has, on its formation, the following objectives;

- a) To support and empower its member law students through services, professional development and different local and international collaborations to become lawyers committed to find a solution to the voluminous legal problems that the country faces.
- b) To provide forum for the school students to discuss topics related with communities and individual legal problems and help in putting a way forward.
- c) To promote and foster the dissemination of relevant legal information to the whole community of the university.
- d) To ensure the enjoyment of every member students of his right to education, health, clean and secure environment.
- e) To avoid dismissal of a member students from the university because of academic misconduct and inefficiency.

Article 10. Gender Reference

What is stated in this Constitutive Act referring to male also refers to female.

CHAPTER TWO

RIGHTS AND DUTIES

SECTION ONE: RIGHTS OF MEMBERS

Article 11. Right to Education

Each and every member students shall have the right to education as provided by the Federal Democratic Republic of Ethiopian Constitution.

Article 12. Right to Services

In order to enjoy his/her right to education, every member student shall have access to services such as dormitory, cafe, library and other indispensable facilities.

Article 13. Right to different Opportunities

- 1) Every member student shall have equal right to participate in different opportunities through the school or the university.
- 2) Without prejudice to sub-article, a special requirement set by the concerned opportunity shall be met, if any.

Article 14. Other Rights

In addition to what is provided by the preceding articles, member students have the following rights;

- 1) The right to access each and every result of their assessments on time.
- 2) The right to participate in any meeting concerning them through their representative(s).
- 3) The right to be informed in advance of registration, examination, and other critical dates.
- 4) The rights to comment, criticize, and suggest on the teaching and learning process of the school.

SECTION TWO: DUTIES OF MEMBERS

Article15. Registration

Every member student has a duty to avail himself on time and conduct a timely registration as per the University's Academic Rules and Regulations.

Article 16. Attending Classes

- 1) Member students shall as much as possible attend each classes in each courses.

- 2) In case attending the whole class in a given course is not possible for any reason, the student has to, at least attend eighty percent of the course, as per the University's Academic Rules and Regulations.

Article 17. Other Duties

Notwithstanding what is stated in the preceding two articles, member students shall bear the following duties and responsibilities;

- a) Member students have a responsibility to be a role model to the rest of the University's community in all required means's.
- b) A member student should take a leading role initiating, formulating and bringing in to being a problem solving ideas.
- c) Duty to respect and regulation of the University and the school.
- d) Duty to respect identity of others.
- e) Duty to respect the school's staff and other communities of the University.

CHAPTER THREE

ORGANIZATIONAL STRUCTURE AND MANAGEMENT OF THE ASSOCIATION

Section One: General Provisions

Article 18. Structure of the Association

The JIMMA UNIVERSITY LAW STUDENTS ASSOCIATION is composed of the Executive Board and the General Assembly.

Article 19. Form of Governance

A free democratic and presidential system shall be the form of governance of JIMMA UNIVERSITY LAW STUDENTS ASSOCIATION.

Section Two: The General Assembly

Article 20. Members of the General Assembly

- 1) The General Assembly being composed of all members of the Association is the highest authority and decision making body of the Association.
- 2) Members of the General Assembly shall meet, at least, twice per annum.
- 3) Members shall have the right to vote and contest for the positions in the executive board representing the member student's community.

Article 21. Powers and Functions of the General Assembly

- 1) The General Assembly shall have the power to oversee works of representatives of the Associations.
- 2) The General Assembly shall have the power to approve goals and projects set by the Board.
- 3) The General Assembly shall have the power to approve appointment of different officials nominated and proposed by the chair person.
- 4) It shall have the power to evaluate and comment on reports of the Board.
- 5) It shall elect and approve the higher executive heads.
- 6) To propose the activities and programs of the JULSA.

Section Three: The Executive Board

Article 22. Members of the Executive Board

- 1) The Association shall be managed by the Executive Board.
- 2) The Board is composed of the three higher executive persons (the chair person, vice chair person, and the general secretary), two representatives from each batch (one female and male), and one representative for the disable groups.
- 3) One of the higher executive persons shall be women.
- 4) The Board is accountable to the chair person of the Association.
- 5) The Board is vested with the highest executive power and officially represents the Association.
- 6) The higher executives of the Board shall be elected by the General Assembly for a period of one year.
- 7) The higher executive shall facilitate for and elect the other members of the Board.
- 8) Members of the Board may cease to hold office for either of the following reasons;
 - a) End of his/her term of office
 - b) Official resignation
 - c) Death
 - d) Removal by the decision of the Board or the General Assembly after complaint by member student for a genuine reason.

Article 23. Powers and Functions of the Executive Board

- 1) The Board is the policy making body of the Jimma University Law Students Association with a legislative power.
- 2) The Board shall be responsible for planning, and overseeing the execution of activities and projects of the Association.
- 3) The Board shall have the authority to establish any special or ad hoc committees, sub-committees, or positions needed based on the circumstances.

- 4) The Board shall prepare annual report of the activities, projects, events and overall standing of the Association.
- 5) Each executive member shall obey and enforce this Constitutive Act.

Section Four: Executive Heads, Appointment, Powers and Functions

Article 24. The Executive Heads

The Executive Heads shall consist of the following positions for the purpose of division of administrative responsibilities; the Chair Person, the Vice Chair Person, and the General Secretary.

Article 25. Appointment of the Executive Heads

- 1) The Executive Heads shall held position by election according to number of votes they are given, in the following manner:
 - a) A candidate securing the first top vote shall be the Chair Person.
 - b) A candidate with the second highest vote shall be the Vice Chair Person.
 - c) A candidate who secures the third highest number of vote shall take position of the General Secretary of the Association.
- 2) The term of office of Executive Heads shall be on Calendar year.
- 3) No one shall be elected as Executive Head for more than two terms.

Article 26. The Chair Person

- 1) The Chair Person of the JULSA is an organ with the highest Executive Authority.
- 2) The Chair Person is responsible for the Activities of the Association.
- 3) The Chair person is accountable to the members of the Association.

Article 27. Powers and Functions

- 1) The Chair person shall open and preside the overall meeting of the Executive Board and the General Assembly.
- 2) The chair person shall ensure that the goals and objective set by the Association are achieved and policy decisions taken are carried out.
- 3) He shall be responsible for the overall supervision of the Board.
- 4) He shall discharge responsibilities entrusted to him by this constitutive act and other laws by which the Association is bound.
- 5) He shall have the power to call special meetings.
- 6) He shall authenticate, by his signature, when necessary all the acts, orders, and proceedings of the Association, declaring its will and in all other things obeying its command.

- 7) He shall perform such duties or Acts required in situations of emergency, where securing consent of the Executive Board is impossible.
- 8) He shall obey this constitutive act and not engage in activities or behaviors that would discredit the University and the Association. This duty of the chair person shall apply mutatis mutandis to all members of the Board.
- 9) He shall prepare and present annual report.

Article 28. The Vice Chairperson: Powers and Functions

- 1) The vice chair person of the JULSA is an organ with the highest executive power immediate to the chair person.
- 2) Without prejudice to the power of the chair person to delegate its power to any of the board, the vice chair person shall act as chair person in the absence of the same.
- 3) Up on vacancy of position of the chair person, he shall assume the position of the chair person for the reminder of the term. However, this is subject to approval by the Board.
- 4) He shall perform all official activities assigned to him by the chair person.
- 5) He shall be accountable to the chair person and the student.
- 6) He shall determine the agenda for the Executive board's meeting.

Article 29. The General Secretary: Powers and Functions

- 1) The General Secretary of JULSA is an organ with the highest executive power next to the chair person and the chair person respectively.
- 2) He shall act as vice chair person and the chair person in the absence of the vice chair person and both respectively; however, both the chair person and the vice chair person can delegate their mandate to any member of the Executive Board.
- 3) He shall keep the stamps, maintain and file all the documents concerning business of the Association.
- 4) He shall type an agenda for each Executive Board and the General Assembly meetings.
- 5) He shall check the Association's mail and suggestion boxes and deliver letters and messages to the appropriate officer and/or concerning bodies.
- 6) He shall be in charge of the notice board and post a copy of the approved minutes.
- 7) He shall prepare facility request form for the signature of the concerned body/bodies.
- 8) He shall administer property of the Association in consultation with the chair person and the vice chair persons.
- 9) The General Secretary is the accountable to the students.

CHAPTER FOUR

FINAL PROVISIONS

Section One: Meetings

Article 30. The Executive Board Meeting

- 1) The Executive Board shall hold its regular meeting once in a month during the academic semesters.
- 2) Extra-ordinary meeting of the Board may be held at any time when called by the president through a twenty four hour prior notice.
- 3) The vice chair person can in the absence of the chair person, also call an emergency meeting after giving a prior notice of twenty four hour.

Article 31. General Assembly Meetings

- 1) The General Assembly shall hold at least two sessions annually.
- 2) The chair person shall have the authority to call General Assembly meetings.

Article 32. Procedures at meeting

- 1) General;
 - a) A two third of full members with a voting right shall form a quorum.
 - b) The general assembly meeting is public and, all members of the association are free and required to participate.
 - c) Participants in the Executive Board meeting are the fourteen members of the Board. Up on necessity, the board may agree as to the participation of any other person in the meeting.
 - d) The Dean of the College, Head of the school of law, invited guests, external advisors and delegates of organization in an official relationship may be observers in the General Assembly Meetings. This is to be decided by the Executive Board.
 - e) All participants and observers have speaking right, but only member participants have proposing right.
- 2) Voting;
 - a) All members shall have voting right, unless devoid of the same by the Executive Board for a justifiable cause.
 - b) Decisions will be taken with a simple majority in cases of a single motion and relative majority in case of several motions.
 - c) Majority will be defined as follows for the purpose of sub-article (b);
 - i). Simple majority: more votes in *favor* than *against*.
 - ii). Relative majority: the proposal receiving the *most votes* carries. In case there are more votes against than any of the proposals, all the proposals fail.

- iii). Two-third majorities: the number of *votes in favor is at least twice* the number of *votes against*. Abstentions do not count in all the above three cases.
- d) In the Boards' meeting when the numbers of votes are equal, the proposal with which the chair person votes in favor shall be the decision.

Article 33. Election

The election of the higher executive head shall be held during the second annual session of the General Assembly.

Article 34. Candidates

- 1) Any member student of the Association shall, without any discrimination on any ground, be eligible for candidacy to be elected as the next executive heads.
- 2) Without prejudice to sub-article one, the candidates may be ranked based on merit having the following and other like criterias:
 - a) Personal integrity or character;
 - b) Academic status;
 - c) Commitment to the position;
 - d) Proposal for election, and others.

Article 35. Amendment of the Constitutive Act

- 1) Any amendment to this Constitutive Act shall be decided by the General Assembly when a simple majority vote is attained.

Article 36. Dissolution

- 1) The dissolution of JULSA shall be decided by the General Assembly when a $\frac{3}{4}$ majority vote is attained. A proposal for dissolution shall be sent to all members at least three (3) months before the beginning of the General Assembly meeting.
- 2) Dissolution of the Association is impossible with a simple and relative majority.